

Tentative Rulings

August 18, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Prieto v. Valta Energy LLC, et al*, Case No. CIVSB2513609
Defendant's Motion for Judgment on the Pleadings
8/18/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to the Request for Judicial Notice: The Court would **DENY**. Private contracts are generally not matters subject to judicial notice pursuant to California Evidence Code section 452. (*Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145-1146 [“before a trial court could find that the existence of a contract was not reasonably subject to dispute the court would have to engage in the kind of fact-finding appropriate for a trial on the merits, not for a hearing on demurrer. While most matters subject to judicial notice can be established by reference to a statute, court file, treatise or other document, a court cannot simply look at a piece of paper and conclude as a matter of law it is a contract between the parties”].)

As to the Motion: The Court would **DENY**.

Case Summary

This is a wage-and-hour class action. Plaintiff seeks to represent the putative class of non-exempt employees who worked for Defendants in California during the statutory period. He asserts that workers were subject to a number of wage-and-hour concerns, and, as such, on May 14, 2025, he filed the instant complaint alleging violations related to (1) minimum wages; (2) overtime wages; (3) the provision of meal periods; (4) the provision of rest breaks; (5) reimbursements; (6) accurate wage statements; (7) final pay; as well as (8) violation of the unfair competition law (UCL). Notably, the UCL claim is underpinned by the purported wage-and-hour violations.

Summary of the Law

A party may bring a motion for judgment on the pleadings after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.) If the moving party is the defendant, then a motion for judgment on the pleading (JOP) is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., § 438(c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., § 438(d).)

Analysis

At issue here is whether a severance agreement precludes Plaintiff's claims. Defendant seeks judicial notice of the purported severance agreement and then argues that the general release, waiver, and covenant not to sue preclude the instant action. Plaintiff argues that Defendant failed to adequately meet and confer prior to the motion and that, alternatively, the claims are adequately pleaded.

Meet & Confer is Adequate – Before filing a JOP, the moving party is required to meet and confer. (Code Civ. Proc., § 439(a).) Here, however, the declaration submitted with the motion satisfies the requirement. It asserts a meet-and-confer process beginning on May 5, 2026. (Schnayerson Decl., ¶10.) It further shows correspondences requesting agreement that the process was sufficient or that a call occur. (Schnayerson Decl., ¶13.) It also indicates no response to the invitation other than to assert that counsel was unavailable. (*Id.*, ¶14.) Finally, it indicates that counsel further called on June 22, 2026, and

that Plaintiff's counsel maintained that it would not dismiss. (*Id.*, ¶15.) The Court finds that movant has satisfied the meet-and-confer requirement.

The Request for Judicial Notice – With the motion for judgment on the pleadings, movant submits a request for judicial notice seeking to have the Court take judicial notice of the at-issue severance agreement and general release, along with the signature page. The Court is inclined to deny.

Plaintiff argues that the contract is not appropriate for judicial notice. Plaintiff disputes the contract and submits a declaration stating that he revoked the contract. Thus, he argues that material facts are in dispute. "Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter." (*Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882).

In that vein, private contracts are generally not matters subject to judicial notice pursuant to California Evidence Code section 452. (*Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145-1146 ["before a trial court could find that the existence of a contract was not reasonably subject to dispute the court would have to engage in the kind of fact-finding appropriate for a trial on the merits, not for a hearing on demurrer. While most matters subject to judicial notice can be established by reference to a statute, court file, treatise or other document, a court cannot simply look at a piece of paper and conclude as a matter of law it is a contract between the parties"].)

As to the JOP – It appears that movant is proceeding by the wrong motion. In order for the Court to consider evidence extrinsic from the Complaint, Defendant would have to make a dispositive motion like one for summary judgment. Here, given the four corners of the Complaint, Plaintiff alleges proper claims. The severance agreement and its purported impact is currently outside the purview of this motion.
